

HOUSE No. 5268

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, March 19, 2026.

The committee on Environment and Natural Resources, to whom was referred the petition (accompanied by bill, House, No. 3945) of Judith A. Garcia relative to urban agriculture in environmental justice communities, reports recommending that the accompanying bill (House, No. 5268) ought to pass [Representative Sweezey of Duxbury dissents].

For the committee,

CHRISTINE P. BARBER.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to promote urban agriculture in environmental justice communities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Subsection (d) of section 29A of chapter 23G of the General Laws, as
2 appearing in the 2022 Official Edition, is hereby amended by striking out clause (12) and
3 inserting in place thereof the following clause:-

4 (12) preference shall be given to projects located within 1 mile of an environmental
5 justice population or within an environmental justice municipality, as defined in section 62 of
6 chapter 30.

7 SECTION 2. Section 62 of chapter 30 of the General Laws, as so appearing, is hereby
8 amended by inserting after the definition of “Environmental burdens” the following definition:-

9 “Environmental justice municipality”, a municipality that meets 1 or more of the
10 following criteria: (i) the annual median household income is not more than 65 per cent of the
11 statewide annual median household income; (ii) minorities comprise 40 per cent or more of the
12 population; (iii) 25 per cent or more of households lack English language proficiency; or (iv)
13 minorities comprise 25 per cent or more of the population and the annual median household

14 income of the municipality does not exceed 150 per cent of the statewide annual median
15 household income; provided, that the secretary may determine that a municipality shall not be
16 designated an environmental justice municipality upon finding that: (A) the annual median
17 household income of the municipality is greater than 125 per cent of the statewide median
18 household income; (B) a majority of persons age 25 and older in the municipality have a college
19 education; (C) the municipality does not bear an unfair burden of environmental pollution; and
20 (D) the municipality has more than limited access to natural resources, including open spaces
21 and water resources, playgrounds and other constructed outdoor recreational facilities and
22 venues.